



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11011
(FIRST REVISION)

MAR 24 1994

EXPIRATION DATE: May 31, 1994, or
upon completion of one shipment of
one portable tank identified in
paragraph 7.

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Arco Alaska, Incorporated, Pasadena, California
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time shipment for transportation in commerce of a nonflammable liquefied compressed gas in a non-DOT specification ASME Code "U" stamped portable tank, and provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 173.32(n), 173.315(h), 173.315(i), 178.245-1, 178.245-4, 178.245-5.
5. BASIS: This emergency exemption is based on the February 25, 1994 application filed by Technical Products & Controls on behalf of Arco Alaska, Inc. and additional information dated March 22, 1994, submitted in accordance with 49 CFR 107.113 and a determination that it is necessary to preclude a serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class (Written Class) class number	Identification number	Packing Group
Bromotrifluoromethane	Division 2.2	UN1009	NA

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed is for one (1) non-DOT specification ASME Code "U" stamped portable tank. Tank is manufactured from SA 516 Grade 70 steel; have a design pressure of 450 psig; bear manufacturer's serial number 23775; and have nominal water capacities

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between 300 and 1900 U.S. gallons. Tank must be in conformance with Arrow Tank & Engineering Co. drawings; specifications and calculations on file with the Office of Hazardous Materials Exemptions and Approvals; and DOT Specification 51 (49 CFR 178.245) except as follows:

Sections

- | | |
|---------------|--|
| 178.245-1(b) | All openings are not grouped in one location. The tank has openings on the bottom, side and top. |
| 178.245-4(c) | Lifting lugs are designed to lift portable tank only when empty. |
| 178.245-5(b) | The portable tank will be rigidly and securely mounted to the Central Gas Facility modules. |
| 173.32(n) | Tank outlets are not equipped with automatic excess-flow valves. |
| 173.315(h)(4) | The pressure gauge is attached to a 0.75 inch diameter connection. |
| 173.315(i)(7) | A lockable ball valve is installed between the pressure relief valve and the portable tank. |

b. TESTING - Each non-DOT specification portable tank must be tested as required for DOT Specification 51 portable tanks.

c. MARKING - "DOT-E 11011" must be stamped on the metal manufacturer's data plate specified in § 178.245-6 on the line which reads "U.S. DOT Specification No.".

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

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c. The ball valve installed between the pressure relief valve and the portable tank must be locked in the open position during transportation.

9. MODES OF TRANSPORTATION AUTHORIZED. Cargo vessel.

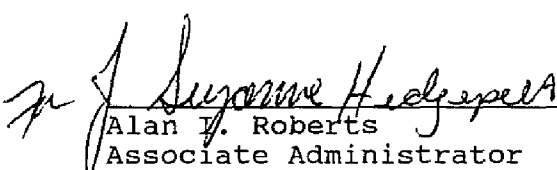
10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each cargo vessel used to transport packages covered by this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Any use or application of this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan Y. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 24 1994
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

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The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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